

SENATE No. 2902

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, January 8, 2026.

The committee on Senate Ways and Means to whom was referred the Senate Bill authorizing the establishment of a mean tested senior citizen property tax exemption (Senate, No. 2036), - reports, recommending that the same ought to pass with an amendment substituting a new draft with the same title (Senate, No. 2902).

For the committee,
Michael J. Rodrigues

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An Act authorizing the establishment of a mean tested senior citizen property tax exemption.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 5 of chapter 59 of the General Laws, as appearing in the 2024 Official Edition, is
2 hereby amended by inserting after section 5O the following section:-

3 Section 5P. (a) In a city or town that accepts this section, there shall be a residential
4 property tax exemption for real property for income and age qualified domiciliary homeowners
5 as provided herein. For the purposes of this section, “parcel” shall mean a unit of real property as
6 defined by the board of assessors under the deed for the property and shall include condominium
7 units. The exemption provided for herein may, at the discretion of the city or town be in addition
8 to any other exemptions on the same property allowed by the General Laws.

9 (b) With respect to each qualifying parcel of real property classified as Class one,
10 residential in the municipality, there shall be an exemption from the property tax in an amount
11 set annually as provided for in paragraph (d). The exemption shall be applied to the domicile of
12 the taxpayer.

(c) A parcel of real property shall qualify for the exemption under this section if each of the following criteria is met:

(i) the qualifying real property is owned and occupied by a person whose income from the prior year would make the person eligible for the credit allowed under subsection (k) of section 6 of chapter 62;

(ii) the qualifying real property is owned by a single applicant age 65 or older as of July 1 of the fiscal year for which the exemption is sought or jointly by persons either of whom is age 65 or above as of July 1 of the fiscal year for which the exemption is sought and the joint applicant is 60 years of age or older;

(iii) the qualifying real property is owned and occupied by the applicant or joint applicants as their domicile;

(iv) the applicant or at least 1 of the joint applicants has been domiciled and owned a home in the municipality for at least 10 consecutive years before filing an application for the exemption;

(v) the assessed value of the domicile is not greater than the prior year's maximum assessed value for qualification for the credit allowed under subsection (k) of section 6 of chapter 62, as adjusted annually by the commissioner of revenue;

(vi) the total assets of the applicant or joint applicant do not exceed any asset limitations established pursuant to subsection (e) to determine eligibility for this exemption; and

(vi) the board of assessors of the municipality has approved the application.

(d) Either the board of assessors of the municipality, or the select board, town council or city council, as decided by the legislative body at the time this section is adopted shall determine, on an annual basis, the exemption amount, which shall not be more than 200 per cent of the maximum amount of the credit allowed under subsection (k) of section 6 of chapter 62 for which the applicant qualified in the previous year.

(e) Either the board of assessors of the municipality, or the select board, town council or city council, as decided by the legislative body at the time this section is adopted may establish limits on the total assets that may be owned by an applicant or joint applicant for purposes of eligibility.

(f) Any person who seeks to qualify for the exemption provided for under this section shall, on or before April 1 of the applicable tax year, or within 3 months after the bill or notice of assessment was sent, whichever is later, file an application, on a form to be adopted by the board of assessors, along with supporting documentation to demonstrate the income and assets as described in the application. The application shall be filed each year for which the applicant seeks the exemption.

(g) The total amount exempted by this section shall be allocated proportionally within the residential tax levy. No exemption shall be granted under this section until the commissioner of revenue certifies a residential tax rate for the applicable tax year where the total exemption amount is raised by a burden shift within the residential tax levy.

(h) Prior to acceptance of this section, and annually thereafter prior to the commissioner of revenue's certification of a residential tax rate for the applicable year, the city or town shall

54 provide and post on its website an estimate of the change to the residential tax rate due to
55 acceptance of this section.

56 (i) An exemption adopted pursuant to this section shall expire 3 years after acceptance;
57 provided, however, that city or town may reauthorize the exemption for additional 3-year
58 intervals by a vote of the legislative body of the city or town.

59 (j) Acceptance of this section may be revoked by an affirmative vote of the legislative
60 body of the city or town and shall take effect 30 days following such affirmative vote.